

25STCV27822 25STCV27822

County: los-angeles

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Hearing date: 2026-09-17

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Case Number: 25STCV27822 Hearing Date: September 17, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: September 17, 2026

CASE NUMBER: 25STCV27822

CASE NAME: Jesus A. Saldana v. General Motors, LLC

MOVING PARTY: Defendant General Motors, LLC

OPPOSING PARTY: Plaintiff Jesus A. Saldana

PROCEEDING: DEMURRER TO FIRST AMENDED COMPLAINT

RULING SUMMARY: Defendant's demurrer is SUSTAINED WITH LEAVE TO AMEND on statute of limitations grounds. Plaintiff is ordered to file an amended pleading within 10 days. The Court sets an Order to Show Cause re Amended Complaint for, and continues the Case Management Conference to _____, 2026, at 8:30AM.

Background

Plaintiff

filed this lemon law action on September 23, 2025 and filed his first amended complaint (FAC) on April 7, 2026. His claims arise from alleged defects in a 2022 GMC Yukon he purchased on February 21, 2022. Defendant demurs to Plaintiff's fifth cause of action for fraudulent concealment, arguing it is time-barred and Plaintiff has failed to state a claim. Plaintiff opposes.

demurrer

I. Legal Standard

Where

pleadings are defective, a party may raise the defect by way of a demurrer. (Coyne v. Krempels (1950) 36 Cal.2d 257, 262.) A demurrer for sufficiency tests whether the complaint alleges facts sufficient to constitute a cause of action. (Code Civ. Proc. § 430.10; Young v. Gannon (2002) 97 Cal.App.4th 209, 220.) When considering a demurrer, a court reads the allegations stated in the challenged pleading liberally and in context, and “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) Put differently: for purposes of demurrer, the court treats all facts alleged – but only the facts alleged – in the complaint as true. (Picton v. Anderson Union High School District (1996) 50 Cal.App.4th 726, 732.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

II. Meeting and Conference

Counsel

met and conferred by telephone. (Perez Decl., ¶ 2.) Code of Civil Procedure section 430.41 is satisfied.

III. Discussion

The

demurrer is sustained with leave to amend. The statute of limitations for fraud is three years. (Code Civ. Proc., § 338(d).) Plaintiff purchased his vehicle more than three years before he filed this lawsuit. He alleges the statute should be tolled because he “discovered Defendants’ wrongful conduct ... July 30, 2025 when Plaintiff requested buyback and/or restitution ... [and] GM failed to provide restitution[.]” (FAC, ¶ 31.) But Plaintiff’s standalone common-law fraud claim depends on the defects in his vehicle, Defendant’s alleged violation of the lemon law.

Plaintiff’s

pleading is not self-defeating on its face, but it fails to state a claim that survives the limitations period because it fails to allege a date when the fraud was discovered or the circumstances under which it was discovered. (Community Cause v. Boatwright (1981) 124 Cal.App.3d 888, 900; see Hobart v. Hobart Estate Co. (1945) 26Cal.2d 412, 437.)

Defendant's

other grounds for its demurrer are not persuasive. In light of the fact that Defendant had superior if not exclusive knowledge of alleged defects, the level of specificity in the FAC is sufficient. A sufficient contractual relationship is alleged through the warranty contract. And the economic loss rule does not preclude the claims because they involve alleged pre-contractual fraud; any post-contractual fraud during the performance period does not, therefore, preclude the claim.

Conclusion

Defendant's

demurrer is SUSTAINED WITH LEAVE TO AMEND on statute of limitations grounds. Plaintiff is ordered to file an amended pleading within 10 days. The Court sets an Order to Show Cause re Amended Complaint for, and continues the Case Management Conference to _____, 2026, at 8:30AM.

Date: September

17, 2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court